

STATE OF NEW YORK

9253--A

2025-2026 Regular Sessions

IN ASSEMBLY

November 21, 2025

Introduced by M. of A. ROSENTHAL -- read once and referred to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to requiring policing agencies to conduct an inventory of, and develop a publicly-available policy for, any artificial intelligence used to aid criminal investigations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The executive law is amended by adding a new section 837-ww
2 to read as follows:

3 § 837-ww. Use of artificial intelligence by policing agencies. 1. For
4 the purposes of this section:

5 (a) "Artificial intelligence" or "AI" means a machine-based technology
6 that can infer from the input it receives how to generate outputs,
7 including content, decisions, predictions, or recommendations.

8 (b) "Covered AI" means any AI used to aid a law enforcement investi-
9 gation, including by generating a lead for further investigation or
10 corroboration, as well as generative AI technologies used to write or
11 materially aid in writing police reports or other records relating to a
12 criminal investigation.

13 (i) Covered AI includes, but is not limited to, technologies that
14 perform biometric identification; forensic DNA phenotyping and probabi-
15 listic genotyping; forensic investigative genetic genealogy; cross-cam-
16 era tracking; vehicle surveillance or tracking including automated
17 license plate readers; anomaly detection; gunshot detection; person-
18 based predictive policing; risk scoring; behavioral analysis; sentiment
19 analysis; convoy analysis; fraud detection; analysis of financial trans-
20 actions; social network or social media analysis; location analysis,
21 data fusion and intelligence analysis platforms.

22 (ii) Covered AI does not mean AI that is used for administrative tasks
23 that do not materially impact investigations, such as productivity and

EXPLANATION--Matter in italics (underscoring) is new; matter in brackets
[-] is old law to be omitted.

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1 document management tools, or generative AI technologies used to check
2 spelling or grammar.

3 (iii) "Use" means operating or accessing a covered AI or data derived
4 therefrom, regardless of whether such system or data is owned by the
5 police agency, another public agency, or a private individual or entity.

6 2. (a) At least ninety days prior to the use of a new covered AI prod-
7 uct, the law enforcement agency shall publish a publicly available
8 disclosure. For covered AI products already in use, the agency shall
9 publish a disclosure within one hundred eighty days of the effective
10 date of this section. Each disclosure shall, at a minimum, include:

11 (i) the name of each system, including the vendor and product name, if
12 applicable;

13 (ii) a brief description of each system's capabilities and limita-
14 tions;

15 (iii) a brief description of the type or types of data inputs each
16 system uses and outputs it produces; and

17 (iv) a brief description of authorized and unauthorized uses for each
18 system; and

19 (v) copies of all internal validation summaries and internal perform-
20 ance checks for each system.

21 (b) AI system inventory information is publicly available in accord-
22 ance with this subdivision if it is posted conspicuously on the law
23 enforcement agency's website in a text-searchable format and is accessi-
24 ble at no cost. If the police agency employs fewer than ten full-time
25 sworn officers and does not maintain a website, such information shall
26 satisfy the requirements of this subdivision if it is made available
27 upon request, consistent with the disclosure response time established
28 in article six of the public officers law, and at no cost to the
29 requesting party.

30 (c) When an agency seeks to acquire or acquires enhancements or addi-
31 tions to covered AI products, or when the product's capabilities are
32 materially changed, the agency shall amend the disclosure within ninety
33 days of the change.

34 3. (a) (i) Any use of covered AI in a criminal investigation shall be
35 disclosed in a police report filed for that investigation.

36 (ii) Upon arrest or citation following a criminal investigation, the
37 police report shall be submitted to the prosecuting attorney's office as
38 well as to the individual under investigation, by and through the indi-
39 vidual's attorney if the individual is represented.

40 (iii) Any use of covered AI by the police agency in a criminal inves-
41 tigation subsequent to arrest shall be disclosed to the prosecuting
42 attorney's office and to the individual under investigation, by and
43 through the individual's attorney if the individual is represented, as
44 soon as practicable but no later than twenty calendar days following
45 such use by the police agency.

46 (iv) Disclosure of the use of covered AI in a police report shall
47 include, at minimum:

48 (A) the name of the covered AI; and

49 (B) a brief description of the covered AI's role in the investigation,
50 including whether it was used to generate an investigative lead, or
51 identify or aid in the identification of a suspect, witness, or victim.

52 (b) (i) A police report or other law enforcement record generated
53 during a criminal investigation that was created in whole or in part by
54 using generative AI shall:

55 (A) include a disclaimer that the report or record contains content
56 generated by artificial intelligence;

1 (B) where technically feasible, identify the specific content in the
2 report that was generated by AI; and

3 (C) include a certification by the author of the report or record that
4 the author has read and reviewed the report or record for accuracy.

5 (ii) The first draft of any report or record created in whole or in
6 part by using generative AI shall be retained for as long as the final
7 report is retained.

8 (iii) The program used to generate a draft or final report shall main-
9 tain an audit trail that, at minimum, identifies:

10 (A) the person who used AI to create or edit a report;

11 (B) any changes made to the report following the initial draft; and

12 (C) all materials used to create a report, including but not limited
13 to video footage, audio footage, photographs, reports, phone records,
14 and other inputs.

15 4. (a) Within ninety days of the effective date of this section, the
16 attorney general shall create and publicly post on its website a model
17 policy for the use of covered AI by police agencies that meets or
18 exceeds the requirements described in paragraph (b) of this subdivision.
19 The attorney general shall review the policy on an annual basis and
20 update as necessary to reflect material changes to covered AI technolo-
21 gies or law enforcement use.

22 (b) The model policy shall, at minimum:

23 (i) include compliance with the requirements described in subdivisions
24 two and three of this section;

25 (ii) describe the authorized uses for covered AI and ban any use that
26 is not explicitly authorized; and

27 (iii) include an acknowledgment that a violation of the policy
28 described in this section may result in administrative disciplinary
29 action.

30 (c) No later than ninety days after the issuance of the model policy
31 described in this subdivision each police agency shall adopt the model
32 policy or a policy that meets or exceeds the requirements in the model
33 policy. A policy adopted by a police agency under this paragraph shall
34 be submitted to the attorney general and be posted conspicuously on the
35 attorney general's website in a text-searchable format and accessible at
36 no cost.

37 5. (a) The attorney general may investigate, and if warranted, bring a
38 civil action against any agency or political subdivision to obtain equi-
39 table or declaratory relief to enforce the provisions of this section.

40 (b) Any person who resides within the jurisdiction of a political
41 subdivision or police agency that is subject to the requirements of this
42 section may bring a civil action against the political subdivision or
43 its police agency to obtain equitable or declaratory relief to enforce
44 the provisions of subdivision two of this section and paragraph (c) of
45 subdivision four of this section. A prevailing plaintiff shall be enti-
46 tled to reasonable attorney's fees and costs.

47 (c) No action may be commenced against a police agency or political
48 subdivision under this section unless the plaintiff has provided written
49 notice of the alleged violation to the agency or political subdivision
50 at least ninety days prior to filing suit, in a manner that is reason-
51 ably calculated to enable the entity to cure the alleged violation.

52 § 2. This act shall take effect immediately.